

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine Matejcek	Team: Squad #01	CCRB Case #: 201703660	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 04/24/2017 10:40 AM	Location of Incident: § 87(2)(b) _____, the 52nd Precinct stationhouse		18 Mo. SOL 10/24/2018		Precinct: 52
Date/Time CV Reported Mon, 05/01/2017 1:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/09/2017 11:48 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Leonard	16224	960796	052 PCT
2. POM Michael Remy	05559	955371	052 PCT
3. POM Jose Pichardo	16323	899715	052 PCT
4. An officer			052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Jordan	18728	961843	052 PCT
2. POM Christophe Ciotti	16232	957468	052 PCT
3. POM Ryan Paccione	09499	961054	052 PCT
4. SGT Mary Carter	03944	939980	052 PCT
5. POM Jonathan Perez	00810	961091	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Leonard	Discourtesy: At § 87(2)(b) _____ in the Bronx, Police Officer Christophe Leonard spoke discourteously to § 87(2)(b) _____	A . Unsubstantiated
B . POM Christophe Leonard	Force: At § 87(2)(b) _____ in the Bronx, Police Officer Christopher Leonard hit § 87(2)(b) _____ against a vehicle.	B . Unsubstantiated
C . POM Christophe Leonard	Abuse: At § 87(2)(b) _____ in the Bronx, Police Officer Christopher Leonard damaged § 87(2)(b) _____'s property.	C . Unsubstantiated
D . POM Christophe Leonard	Abuse: At § 87(2)(b) _____ in the Bronx, Police Officer Christopher Leonard searched the vehicle in which § 87(2)(b) _____ was an occupant.	D . Substantiated
E . POM Michael Remy	Abuse: At § 87(2)(b) _____ in the Bronx, Police Officer Michael Remy searched the vehicle in which § 87(2)(b) _____ was an occupant.	E . Unsubstantiated
F . POM Christophe Leonard	Force: At § 87(2)(b) _____ in the Bronx, Police Officer Christopher Leonard used physical force against § 87(2)(b) _____	F . Unsubstantiated
G . POM Christophe Leonard	Abuse: At § 87(2)(b) _____ in the Bronx, Police Officer Christopher Leonard strip-searched § 87(2)(b) _____	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
H . An officer	Discourtesy: At § 87(2)(b) in the Bronx, an officer acted discourteously toward § 87(2)(b)	H . Officer(s) Unidentified
I . POM Christophe Leonard	Force: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard hit § 87(2)(b) against a vehicle.	I . Unsubstantiated
J . POM Christophe Leonard	Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard spoke discourteously to § 87(2)(b)	J . Unsubstantiated
K . POM Jose Pichardo	Discourtesy: En route to the 52nd Precinct stationhouse, Police Officer Jose Pichardo spoke discourteously to § 87(2)(b)	K . Unsubstantiated
L . POM Christophe Leonard	Abuse: At the 52nd Precinct stationhouse, Police Officer Christopher Leonard strip-searched § 87(2)(b)	L . Unsubstantiated
M . POM Christophe Leonard	Discourtesy: At the 52nd Precinct stationhouse, Police Officer Christopher Leonard spoke discourteously to § 87(2)(b)	M . Unsubstantiated
N . POM Christophe Leonard	Force: At the 52nd Precinct stationhouse, Police Officer Christopher Leonard used physical force against § 87(2)(b)	N . Unsubstantiated

Case Summary

On May 1, 2017, § 87(2)(b) filed this complaint via phone with IAB [01 Board Review]. It was received at the CCRB on May 9, 2017.

On April 24, 2017, § 87(2)(b) left his home at 10:40 a.m. to pick his aunt up and take her grocery shopping. He was stopped on § 87(2)(b) by PO Christopher Leonard and PO Michael Remy of the 52nd Precinct for excessively tinted windows. When the officers approached § 87(2)(b)'s vehicle, § 87(2)(b) offered to remove the tinted window papers and began to peel them from his windows. PO Leonard allegedly told § 87(2)(b) to “shut the fuck up” (**Allegation A**). § 87(2)(b) gave the officers his ID and the officers returned to their RMP to run his information. As they waited in the RMP, § 87(2)(b) reclined his seat, leaned back, and removed the tint papers from his vehicle's rear windows. When the officers ran a client ID check over the radio, they learned that § 87(2)(b) had an active bench warrant from § 87(2)(b) New York, and determined that he needed to be returned on a warrant. The officers also radioed for assistance in transporting § 87(2)(b) back to the stationhouse because their RMP did not have a cage. When PO Leonard and PO Remy returned to § 87(2)(b)'s window, PO Leonard allegedly pulled § 87(2)(b) out of his vehicle and slammed his head against the sunroof of his car, resulting in a crack to the sunroof (**Allegations B and C**). § 87(2)(b) was then frisked and/or searched incident to lawful arrest and placed in the back of the RMP. PO Leonard and PO Remy allegedly searched § 87(2)(b)'s vehicle by entering all four doors and the trunk (**Allegations D and E**). As § 87(2)(b) waited inside the RMP, PO Ryan Paccione and PO Christopher Ciotti, also of the 52nd Precinct, arrived on scene.

§ 87(2)(b) began to move around in the backseat of the RMP and appeared to be reaching for his pockets, so PO Remy removed him from the RMP without incident and he was re-searched with negative results. § 87(2)(b) alleged that PO Leonard dragged him across the ground, and kicked him (**Allegation F**). At some point after § 87(2)(b) was removed from the RMP, PO Jonathan Perez and PO Jose Pichardo, also of the 52nd Precinct, arrived on scene. When all officers were present on scene, PO Leonard allegedly strip-searched § 87(2)(b) by removing his jeans, sweatpants, and underwear while the other officers formed a circle around § 87(2)(b) to block the search from public view (**Allegation G**). An officer allegedly removed cards from § 87(2)(b)'s wallet and threw them to the ground (**Allegation H**). Per § 87(2)(b)'s account, he was placed back inside PO Leonard and PO Remy's RMP while the officers tried to figure out how to start his vehicle, which had a kill switch. After trying and failing to start the car, PO Leonard allegedly returned to the RMP, removed § 87(2)(b) again, brought him to his vehicle, and asked him to turn it on. When § 87(2)(b) made no response, PO Leonard allegedly slammed his head against the hood of his vehicle a second time (**Allegation I**). He allegedly told PO Perez and PO Pichardo to “take this motherfucker to the precinct” (**Allegation J**).

§ 87(2)(b) was then transported to the stationhouse by PO Perez and PO Pichardo. The remaining officers stayed behind for roughly ten minutes trying to start § 87(2)(b)'s vehicle and waiting for a tow truck to take it to the stationhouse. En route to the stationhouse, PO Pichardo allegedly told § 87(2)(b) to “Shut the fuck up” (**Allegation K**). When § 87(2)(b) arrived at the stationhouse, PO Leonard allegedly strip-searched him before placing him in a cell

(**Allegation L**). While waiting in the cells, § 87(2)(b) was permitted to call his friend, § 87(2)(b) and have him pick up his vehicle at the stationhouse. § 87(2)(b) arrived at the stationhouse and retrieved the vehicle without incident. Meanwhile, PO Leonard and PO Remy contacted the § 87(2)(b) Police Department and learned that the warrant was for petit larceny and § 87(2)(b) would not be extradited. The officers discussed the situation with Sgt. Mary Carter, Sgt. Brandi Knox, and Sgt. Colleen Fitzpatrick of the 52nd Precinct and were instructed to create a voided arrest for § 87(2)(b) and release him with a summons for excessively tinted windows. When it came time for § 87(2)(b) to be released, PO Leonard allegedly told him “Grab your shit” and pulled him out of the cells by his arm (**Allegations M and N**).

§ 87(2)(a) PHL § 18(6)

The undersigned made calls to area businesses and the Field Team visited the incident location twice to look for video and witnesses. However, no video footage or independent witness testimony was available for this incident.

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) s reported injuries rendered this case unsuitable for mediation.
- § 87(2)(b) filed a Notice of Claim for this incident on § 87(2)(b) [03 Board Review]. As of the writing of this report, the undersigned has yet to receive confirmation of § 87(2)(b) s 50-H testimony.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) s first CCRB complaint [05 Board Review].
- PO Leonard has been a member of the NYPD for one year. This is the first CCRB case filed against him [06 Board Review].
- PO Remy has been a member of the NYPD for four years. This is the first CCRB case filed against him [06 Board Review].

- PO Pichardo has been a member of the NYPD for 26 years. This is the sixth CCRB case filed against him. #9502141 and #9604283 contained verbal discourtesy allegations against him but were both administratively closed. The remaining cases, #9800305, #9800319, and #200005086, were respectively closed as complainant uncooperative, unfounded, and exonerated. § 87(2)(g)

Potential Issues

- Due to a technical error, roughly one hour of § 87(2)(b)'s sworn statement was not recorded.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g). Although § 87(2)(b) did not provide a description that definitively differentiated PO Leonard from PO Remy, § 87(2)(b) noted that the subject officer was the operator of the RMP and was the officer who eventually issued him his summons. By all accounts, this was PO Leonard.

§ 87(2)(g). § 87(2)(b) described the subject as a Hispanic male in his late 30s with brown skin, who stood 6' tall with an average build, § 87(2)(g).

§ 87(2)(b) stated that the subject of Allegation K was a male with a medium skin tone and a moustache who was in his 40s. PO Pichardo is a § 87(2)(b) Hispanic male with a medium skin tone. Although his MOS photo shows him with no facial hair, PO Pichardo had a distinctive moustache at the time of his CCRB interview. § 87(2)(g)

§ 87(2)(b) stated that a white male officer in his 20s who stood 5'5" tall with brown eyes, black hair, and a slim build witnessed the strip-search allegedly conducted by PO Leonard in the stationhouse. He also noted that, as he chatted with the officer in the cells, the officer informed him that he had been in the NYPD for roughly one year and that he had court later that day. PO Jordan is a § 87(2)(b) white male § 87(2)(b) with an average build, black hair and hazel eyes. He has been a member of the NYPD for one year, was working as the cell attendant at the time of the incident, and had court later that day. § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Allegation A – Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard spoke discourteously to § 87(2)(b)

Allegation B – Force: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard hit § 87(2)(b) against a vehicle.

Allegation C – Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard damaged § 87(2)(b) s property.

After stopping § 87(2)(b) s 1994 Honda Civic, PO Leonard and PO Remy informed him that his windows were illegally tinted. § 87(2)(b) gave PO Leonard his ID and offered to solve the problem by removing his tint papers then and there. When § 87(2)(b) started peeling off the tint papers, PO Leonard allegedly told him to “shut the fuck up.” PO Leonard and PO Remy returned to their RMP to check § 87(2)(b) s ID. In the meantime, § 87(2)(b) reclined his seat, removed the tint papers from the remaining windows of his vehicle, balled them up, and set them on the dashboard. When PO Leonard and PO Remy returned to his vehicle, § 87(2)(b) showed PO Leonard that he had already removed the tint papers. Without issuing § 87(2)(b) any instructions, PO Leonard allegedly pulled him out of his vehicle, handcuffed him, and slammed his head against the vehicle’s roof. In his CCRB interview, § 87(2)(b) alleged that this force resulted in a crack to his sunroof. § 87(2)(b) sent the undersigned an undated photograph of this damage [09 Board Review]. However, during his initial phone statement, § 87(2)(b) described this damage as a dent. § 87(2)(b) stated that he did not resist PO Leonard in any way. Although § 87(2)(b) alleged that he suffered injuries to his neck as a result of this incident, he did not attribute these injuries to any specific use of force, but rather to PO Leonard’s general forcefulness throughout the interaction.

PO Leonard testified that § 87(2)(b) had no visible injuries when he was first stopped. He described § 87(2)(b) s vehicle as old and dilapidated and noted that the rearview mirror was broken. When PO Leonard requested § 87(2)(b) s ID, § 87(2)(b) stated that his license was suspended and that he had warrants. § 87(2)(b) seemed nervous and was speaking

rapidly, rambling, and “fidgeting.” PO Leonard was not able to describe § 87(2)(b) s movement in more detail when pressed to do so. This behavior led PO Leonard to suspect that § 87(2)(b) was on drugs, although he did not have any specific suspicion about what drugs he may have taken. § 87(2)(b) also began to peel the tint papers from his windows as PO Leonard stood next to his vehicle. PO Leonard told § 87(2)(b) that there was no need for him to do that, but did not issue him any commands to stop. Their conversation did not at any point escalate into an argument, and PO Leonard did not tell § 87(2)(b) to “shut the fuck up” or use any other profanity against him. When PO Leonard and PO Remy returned to their RMP, they conducted a client ID check on § 87(2)(b) over the radio. When they did so, they learned that § 87(2)(b) had an active bench warrant from § 87(2)(b) New York. The officers were not able to see what the warrant was for at that time. As the officers checked § 87(2)(b) s ID, PO Leonard noticed § 87(2)(b) leaning the upper half of his body into the backseat of his vehicle to remove the rest of his tint papers. The RMP was approximately two car lengths behind § 87(2)(b) s vehicle as he made these observations. He did not see whether § 87(2)(b) was reaching for any area of the vehicle aside from the windows. This movement made PO Leonard concerned that he may have been hiding or reaching for something in his vehicle. PO Leonard and PO Remy exited their RMP, approached § 87(2)(b) s driver’s side door, and informed him that he had a warrant. PO Leonard asked § 87(2)(b) to step out of the vehicle and he immediately complied without any physical assistance. PO Leonard stated that he never used physical force against § 87(2)(b) never slammed any part of his body against any vehicle, and that § 87(2)(b) s vehicle was never damaged as a result of force used by an officer. After exiting his vehicle, § 87(2)(b) was immediately handcuffed without incident, although PO Leonard did not recall who handcuffed him. PO Remy then escorted § 87(2)(b) to the RMP without incident while PO Leonard remained near § 87(2)(b) s vehicle.

§ 87(2)(g) When the officers were running § 87(2)(b) s ID, PO Remy saw § 87(2)(b) appear to be picking at the tint papers in the front seat of his vehicle. He never saw § 87(2)(b) removing tint papers from the backseat and did not see him reaching anywhere other than the window area. PO Remy did not suspect that § 87(2)(b) was doing anything in his vehicle other than removing tint papers.

PO Remy did not recall the original condition of § 87(2)(b) s vehicle but stated that he did not notice any obvious damage when he first approached it. § 87(2)(b) did not have any visible injuries and was not wearing a neck brace. PO Leonard told § 87(2)(b) why he was being stopped and § 87(2)(b) provided his ID without any issues. PO Remy noticed that § 87(2)(b) was acting nervous and “twitchy.” When asked to elaborate, PO Remy stated that § 87(2)(b) was making “furtive movements,” picking at the tint papers of his windows as the officers were speaking to him. PO Remy did not recall if he or PO Leonard issued § 87(2)(b) any commands to stop peeling off the tint papers. He denied that PO Leonard ever told § 87(2)(b) to “shut the fuck up” or used profanity against him in any other context. Based on his prior experiences as a police officer, PO Remy believed that § 87(2)(b) may have been “on something” because he was nervous. PO Remy did not have any more specific suspicions as to what § 87(2)(b) may have been under the influence of. The officers took § 87(2)(b) s ID back to their RMP and ran a client ID check over the radio. This check revealed that § 87(2)(b) had an active warrant from outside the city, although the officers did not know what

the warrant was for. PO Remy stated that, in the minutes-long period when the officers were checking § 87(2)(b)'s ID, he did not see § 87(2)(b) doing anything inside his vehicle. Later, he stated that § 87(2)(b) appeared to be picking at the tint papers at the front of his vehicle at the time. However, he never saw § 87(2)(b) removing tint papers from the back seat and did not see him reaching anywhere other than the window area. PO Remy did not suspect that § 87(2)(b) was doing anything in his vehicle other than removing tint papers. PO Remy and PO Leonard then approached § 87(2)(b)'s driver's side door, informed him that he had a warrant, and asked him to step out of the vehicle. § 87(2)(b) exited the vehicle without incident and without any assistance from either officer. PO Remy denied that PO Leonard slammed § 87(2)(b)'s head against his vehicle or used any other physical force against him, including force that could have damaged his vehicle.

Although PO Paccione, PO Ciotti, PO Perez, and PO Pichardo were not on scene to witness Allegations A through C, the officers uniformly testified that they never heard § 87(2)(b) complain that an officer had slammed his head against his vehicle, damaged his sun roof, or done anything to cause him neck pain. They also testified that, upon their arrival and throughout the incident, they did not see any visible injuries to § 87(2)(b)'s person or hear § 87(2)(b) complain of pain to his neck. PO Paccione, PO Perez, and PO Pichardo stated that § 87(2)(b)'s vehicle had no obvious damage, while PO Ciotti stated that the vehicle looked old and had general cosmetic damage.

No TRI reports were prepared in relation to this incident.

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **unsubstantiated**.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **unsubstantiated**.

Similarly, PO Leonard and PO Remy denied that any action by PO Leonard resulted in damage to § 87(2)(b)'s vehicle. The other responding officers did not see any distinctive damage to the vehicle, while PO Leonard, PO Remy, and PO Ciotti described the vehicle as an old car with some general cosmetic damage. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard searched the vehicle in which § 87(2)(b) was an occupant.

Allegation E – Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Michael Remy searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) was brought to the back of the RMP without incident. From the RMP, which was parked roughly three feet behind his vehicle, § 87(2)(b) watched PO Leonard and PO Remy search his vehicle by opening all four doors and the trunk, checking under the seats, and moving items around. § 87(2)(b) could not see exactly what the officers were doing from where he was seated. As this search was ongoing, additional officers arrived on scene.

PO Leonard testified that PO Remy placed § 87(2)(b) inside the RMP without incident. As PO Remy did this, PO Leonard turned his attention to § 87(2)(b)'s vehicle. The front driver's side door was still open from when § 87(2)(b) exited, so PO Leonard entered that door by placing his knees on the seat and leaning into the front and back of the vehicle. While in this position, PO Leonard leaned further into the vehicle to check the backseat and floors. PO Leonard did not consider this to be a search because he did not enter any compartments inside the vehicle. He stated that he took this action because he wanted to see if § 87(2)(b) was hiding anything illegal in the back of his vehicle. He suspected that there may have been drugs or a weapon in the backseat because he had seen § 87(2)(b) reaching towards that area as officers checked for warrants. PO Leonard stated that he did not consider § 87(2)(b)'s movements to be particularly alarming and that nothing else about the interaction up to that point had caused him to fear for his safety. PO Leonard searched the vehicle for less than one minute and did not recover anything. He did not search under the seats or open the trunk, any compartments, or any other doors. PO Remy did not assist with the search.

PO Remy stated that, after § 87(2)(b) was handcuffed, he led him back to the RMP and placed him inside the vehicle without incident. After doing so, he stood outside the RMP and watched § 87(2)(b). Meanwhile, PO Leonard conducted a visual inspection of § 87(2)(b)'s vehicle. PO Remy stated that he only glanced up at what PO Leonard was doing, so he could not say for sure whether any doors to § 87(2)(b)'s vehicle were open at the time. From what PO Remy could see, PO Leonard looked around at the grabbable areas of the vehicle. PO Remy did not recall whether PO Leonard ever entered the vehicle. PO Remy did not know if PO Leonard looked inside the trunk, under the seats, or inside any containers or compartments.

within the vehicle. PO Remy stated that PO Leonard was looking at § 87(2)(b)'s vehicle for a few minutes. At that point, § 87(2)(b) had not done anything that presented a safety concern to PO Remy. PO Remy denied entering § 87(2)(b)'s vehicle at any point during this incident.

PO Paccione testified that he and PO Ciotti responded to a radio run requesting assistance with transporting a civilian to the stationhouse. When he and PO Ciotti arrived, they saw § 87(2)(b) standing near his vehicle in handcuffs. PO Paccione believed that he was on scene when § 87(2)(b) was placed inside PO Leonard and PO Remy's RMP, but he was not sure who brought him there. PO Paccione stated that, after § 87(2)(b) was transported to the stationhouse, officers entered his vehicle in an effort to start it, but that prior to that point no officer ever entered § 87(2)(b)'s vehicle while he was on scene. PO Paccione never learned whether any officer had searched § 87(2)(b)'s vehicle prior to his arrival.

PO Ciotti testified that when he arrived on scene, § 87(2)(b) was not in a vehicle and was in handcuffs. Shortly after PO Ciotti arrived on scene, an officer (he did not remember which) placed § 87(2)(b) inside PO Leonard and PO Remy's RMP. PO Ciotti stated that, after § 87(2)(b) left the scene, he entered his vehicle to try to get it to start by turning the key. PO Ciotti did not recall whether any officer entered § 87(2)(b)'s vehicle for any reason other than to try to start it. He never learned that any officers suspected that there were drugs or weapons inside the vehicle and never learned that a vehicle search had been conducted prior to his arrival.

PO Perez and PO Pichardo arrived on scene after the alleged vehicle search occurred. Both officers testified that they never saw § 87(2)(b) inside PO Leonard and PO Remy's RMP and never saw any officer enter § 87(2)(b)'s vehicle for any reason. Neither officer learned that a vehicle search had been conducted prior to their arrival.

A warrantless search of a vehicle is permissible given the "automobile exception" to the search warrant requirement if it meets the following criteria: there must be an arrest, the officers must have probable cause to believe that the evidence or contraband will be found inside the vehicle, and there must exist, however flexible, a nexus between the arrest and the purpose of the search (*People v. Galak*, 81 N.Y.2d 463 [1993]) [12 Board Review]. Once an individual exits a vehicle, if there is no "actual and specific" threat to the safety of the officer, or any further justification to search the vehicle, such a search is unlawful (*People v. Hackett*, A.D.3d 1122; 850 N.Y.S.2d 676 [2008]) [13 Board Review].

§ 87(2)(g)
It is therefore recommended that **Allegation D** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as unsubstantiated.

Allegation F – Force: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard used physical force against § 87(2)(b)

Allegation G – Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard strip-searched § 87(2)(b)

Allegation H – Discourtesy: At § 87(2)(b) in the Bronx, an officer acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that, after officers searched his vehicle, PO Leonard returned to the RMP, pulled him out and onto the ground, kicked him, and dragged him across the ground towards the rear of the RMP. This force resulted in a laceration to § 87(2)(b)'s shin [14 Board Review]. PO Leonard allegedly positioned § 87(2)(b) next to the RMP and strip-searched him by removing his jeans, sweatpants, and underwear, touching his genitals, and inserting his fingers into his anus. The other officers on scene made a human wall around § 87(2)(b) to conceal the strip-search from public view. Nothing was recovered during the strip-search. An officer allegedly took § 87(2)(b)'s wallet, removed cards from inside it, and threw them to the ground.

PO Leonard stopped searching § 87(2)(b)'s vehicle when he saw PO Remy lean into the RMP out of the corner of his eye. This struck PO Leonard as unusual, so he immediately walked over to the RMP to see what was happening. Later, PO Remy informed PO Leonard that § 87(2)(b) had been reaching for the back of his pants inside the RMP. PO Remy reached into the back of the RMP, grabbed § 87(2)(b) by both of his arms, and pulled him out of the vehicle. PO Remy did not have to struggle with § 87(2)(b) in order to remove him from the vehicle, but PO Leonard observed that § 87(2)(b) appeared to be pulling his body away from PO Remy. Once PO Remy removed § 87(2)(b) from the vehicle, PO Leonard searched him. He was wearing gloves during the search because he did not want to get any drugs on his hands. PO Leonard patted down § 87(2)(b)'s entire body and did not feel any bulges. He entered the pockets of § 87(2)(b)'s jeans, although he did not recall which specific pockets they were. He did not recall whether he removed anything from these pockets, but stated that he did not recover any illegal contraband during the search. PO Leonard stated that, throughout the search, he never had any suspicion that § 87(2)(b) was concealing contraband that would not have been accessible through a routine search. During the search, he never placed his hands underneath § 87(2)(b)'s clothing, did not expose his underwear or pull out his waistband, and did not make contact with his genital region or buttocks. PO Leonard did not request approval to conduct a strip-search on scene and did not strip-search § 87(2)(b). PO Leonard stated that, following the search, he and PO Remy both asked § 87(2)(b) if he had any guns or drugs on his person. § 87(2)(b) stated that he did not. After finishing the search, § 87(2)(b) was placed back into the RMP without any further issues. To PO Leonard's recollection, additional units had not

arrived on scene at this point in the incident. PO Leonard did not see any officer in possession of § 87(2)(b)'s wallet at any point during this incident and did not observe or learn that any officer had removed its contents and thrown them onto the ground. PO Leonard stated that no officer on scene ever dragged § 87(2)(b) across the ground, kicked him, slammed him against a vehicle, or used any other type of physical force against him.

§ 87(2)(g) After observing § 87(2)(b) reaching for his pants pockets and rear in the backseat of the RMP, he guided § 87(2)(b) out of the backseat by holding his arm. After exiting the RMP, § 87(2)(b) began to twist his body, shake his shoulders, and turn his arms away from PO Remy. By this point, PO Ciotti and PO Paccione had arrived on scene. PO Remy, PO Ciotti, and PO Paccione each held onto § 87(2)(b)'s arms to keep him from moving. At that point, PO Leonard frisked § 87(2)(b). PO Remy did not recall if PO Leonard entered any of § 87(2)(b)'s pockets, but stated that none of § 87(2)(b)'s clothing was removed or moved. PO Remy did not recall if § 87(2)(b)'s waistband was pulled out or if his underwear was exposed. He stated that, at the time, he suspected that there could have been inaccessible contraband concealed on § 87(2)(b)'s person due to the "furtive movements" he made in his own vehicle and his movement in the back of the RMP. PO Remy stated that these circumstances could possibly have necessitated a strip search, but that he did not take any actions in response to these suspicions.

§ 87(2)(g) PO Paccione did not have any suspicion that § 87(2)(b) was concealing inaccessible contraband. PO Paccione stated that he did not recall if § 87(2)(b)'s underwear was exposed at any point during the search.

PO Ciotti suspected that § 87(2)(b) may have been concealing inaccessible contraband based on the fact that he was moving around in the RMP. The only action that officers took to address this suspicion was searching the RMP. PO Ciotti stated that § 87(2)(b)'s underwear was never exposed at any point.

PO Perez did not arrive on scene until § 87(2)(b) had already been removed from the RMP. TO his knowledge, no officer on scene ever suspected that § 87(2)(b) had inaccessible contraband on his person. PO Perez did not recall if § 87(2)(b)'s clothes were removed or moved, if his waistband was pulled out, or if his underwear was exposed.

Similarly, PO Pichardo testified that he did not arrive on scene until § 87(2)(b) was already standing outside the RMP. PO Pichardo never suspected that § 87(2)(b) had inaccessible contraband. He denied that § 87(2)(b)'s clothing was removed or moved, that his waistband was pulled out, and that his underwear was exposed.

Sgt. Mary Carter of the 52nd Precinct was the patrol supervisor at the time of the incident. Sgt. Carter did not recall whether she responded to the scene to verify the arrest. No officer requested approval from her to conduct a strip-search and she never provided that authorization.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation F** be closed as **unsubstantiated**.

§ 87(2)(g)

it is recommended that **Allegation G** be closed as **unsubstantiated**.

§ 87(2)(g)

In is therefore recommended that **Allegation H** be closed as **officer unidentified**.

Allegation I – Physical Force: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard hit § 87(2)(b) against a vehicle.

Allegation J – Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Christopher Leonard spoke discourteously to § 87(2)(b)

§ 87(2)(b) was then placed back inside the RMP while a group of officers tried to determine how to start his vehicle. PO Leonard allegedly removed § 87(2)(b) from the RMP, walked him back towards his vehicle, and asked him how to start it. When § 87(2)(b) did not respond, PO Leonard allegedly slammed his head against the hood of the vehicle. § 87(2)(b) was not injured as a result of this force, and his vehicle did not sustain any further damage. PO Leonard allegedly told PO Perez and PO Pichardo to “Take this motherfucker to the precinct.”

PO Leonard testified that, after searching § 87(2)(b) he placed him back inside his and PO Remy’s RMP without incident. Before § 87(2)(b) was transported to the stationhouse, PO Leonard went to § 87(2)(b)’s vehicle to try to get it to start or at the very least see that the locks worked. PO Leonard, PO Ciotti, and PO Paccione each tried to start the vehicle by turning the key but did not take any other measures to find out why it was not working. The officers were unable to start the vehicle. Additionally, the doors would not lock. PO Leonard explained that, because the vehicle could not be secured on scene, he was procedurally obligated to take it back to the stationhouse. PO Leonard stated that he never asked § 87(2)(b) how to start his vehicle. As discussed above, PO Leonard denied slamming § 87(2)(b)’s head against his vehicle in any context and denied using force of any kind against him. PO Leonard denied saying “take this motherfucker to the precinct” or using any other profanity towards § 87(2)(b).

§ 87(2)(g) per PO Remy's account, officers did not attempt to start § 87(2)(b)'s vehicle until § 87(2)(b) was already en route to the stationhouse.

PO Paccione, PO Ciotti, PO Perez, and PO Pichardo echoed PO Remy's testimony.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) also noted that this particular use of force did not cause him any pain or injury. The officers uniformly denied that PO Leonard slammed § 87(2)(b)'s head against his vehicle at any point during this incident. § 87(2)(g)

it is recommended that **Allegations I and J** be closed as **unsubstantiated**.

Allegation K – Discourtesy: En route to the 52nd Precinct Stationhouse in the Bronx, Police Officer Jose Pichardo spoke discourteously to § 87(2)(b)

As he was being transported to the stationhouse, § 87(2)(b) asked the RMP's driver, identified by the investigation as PO Pichardo, what was going on. PO Pichardo allegedly told § 87(2)(b) to "shut the fuck up" and ignored his question.

PO Pichardo testified that § 87(2)(b)'s behavior was calm and "unmemorable" throughout this incident. He and PO Perez transported § 87(2)(b) to the stationhouse without incident. PO Pichardo stated that he did not tell § 87(2)(b) to "shut the fuck up" and did not use any other profanity against him.

Similarly, PO Perez testified that § 87(2)(b)'s behavior did not present any issues in transit. He was calm and unmemorable, and PO Perez did not recall hearing any arguments inside the RMP. PO Perez stated that PO Pichardo did not tell § 87(2)(b) to "shut the fuck up" or use any profanity against him.

§ 87(2)(g)

it is recommended that **Allegation K** be closed as **unsubstantiated**.

Allegation L – Abuse of Authority: At the 52nd Precinct Stationhouse in the Bronx, Police Officer Michael Leonard strip-searched § 87(2)(b)

Allegation M – Discourtesy: At the 52nd Precinct Stationhouse in the Bronx, Police Officer Michael Leonard spoke discourteously to § 87(2)(b)

Allegation N – Force: At the 52nd Precinct Stationhouse in the Bronx, Police Officer Michael Leonard used physical force against § 87(2)(b)

§ 87(2)(b) testified that, when he arrived at the stationhouse, PO Leonard took him to a room next to the cells and removed his pants to strip-search him. The cell attendant, identified by the investigation as PO Jordan, allegedly witnessed the search. § 87(2)(b) was then placed inside the cells. At some point, § 87(2)(b) came to the stationhouse and picked up § 87(2)(b)'s vehicle without incident. At approximately 2:30 p.m., PO Leonard came to § 87(2)(b)'s cell

and allegedly said “Grab your shit.” As § 87(2)(b) gathered his belongings, PO Leonard allegedly grabbed his arm and pulled him out of the cell. § 87(2)(b) s arrest was voided and he was released with a summons for excessively tinted windows.

PO Leonard testified that, after PO Perez and PO Pichardo left to take § 87(2)(b) to the stationhouse, he and the other officers remained on scene for approximately 10 minutes. During this time, they tried to get § 87(2)(b) s vehicle to start or lock, but eventually had to call a tow truck to bring it to the stationhouse because it could not be secured on scene. By the time PO Leonard arrived at the stationhouse, § 87(2)(b) was already in the cells. PO Leonard stated that, while § 87(2)(b) should have been searched upon arrival at the stationhouse as a matter of procedure, he did not observe or participate in this search and never learned anything about it. PO Leonard denied strip-searching § 87(2)(b) at any point at the stationhouse. After arriving at the stationhouse, PO Leonard checked with the § 87(2)(b) Police Department and learned that they would not be extraditing § 87(2)(b) because the bench warrant was for petit larceny. PO Leonard discussed the situation with Sgt. Knox of the 52nd Precinct and Sgt. Knox instructed him to create a voided arrest for § 87(2)(b) and release him with a summons. PO Leonard went to the cells to explain the situation to § 87(2)(b) § 87(2)(b) s mood brightened when he heard the news, and PO Leonard characterized their conversation as friendly. PO Leonard denied telling § 87(2)(b) to “grab [his] shit” or using any other profanity against him at the stationhouse. § 87(2)(b) was not handcuffed and did not require any physical assistance exiting the cell area. PO Leonard did not grab § 87(2)(b) by the arm or use any other force against him inside the stationhouse. § 87(2)(b) was then released without incident.

PO Jordan had no recollection of this incident and did not recognize § 87(2)(b). He stated that, based on where he was standing during his shift as the cell attendant, he would have known if any strip-searches were being conducted. However, he did not witness any strip-searches on the date in question, and has never witnessed a strip-search so far in his career as an officer. PO Jordan stated that he did not hear PO Leonard tell any civilian to “grab [his] shit” or use any other profanity on the date in question. He did not see PO Leonard use force against any civilian on that date.

PO Pichardo stated that PO Perez searched § 87(2)(b) before he was placed in the cells. PO Pichardo was standing in the immediate vicinity when the search was conducted. PO Pichardo never suspected that § 87(2)(b) was concealing contraband that would not have been accessible through a routine search. During PO Perez’s search, § 87(2)(b) s clothing was not removed or moved, his waistband was not pulled out, and his underwear was not exposed. No officer requested approval to conduct a strip-search and no strip-search was conducted. Once § 87(2)(b) was placed in the cells, PO Pichardo and PO Perez left the stationhouse. PO Pichardo never learned of anything that happened after he left.

PO Perez testified that, after arriving at the stationhouse, he and PO Pichardo searched § 87(2)(b) before placing him in the cells. PO Perez did not recall if anyone else participated in or observed the search. He did not at any point suspect that § 87(2)(b) had any inaccessible contraband on his person and stated that he never moved or removed § 87(2)(b) s clothing. He did not recall if § 87(2)(b) s waistband was pulled out or if his underwear was exposed. No officer requested approval for a strip-search and no strip-search was conducted. After placing

§ 87(2)(b) in the cells, PO Perez and PO Pichardo left the stationhouse. PO Perez never learned of anything that might have happened at the stationhouse after he left.

Sgt. Carter was the patrol supervisor at the time of the incident. Although she did not recognize § 87(2)(b) she stated that she gave PO Leonard and PO Remy instructions to release § 87(2)(b) with a summons when they found out that the § 87(2)(b) Police Department would not be extraditing him. Sgt. Carter stated that, although she did not know which officer searched § 87(2)(b) when he was brought to the stationhouse, she never learned of any issues with this search. No officer ever requested authorization to conduct a strip-search and, to her knowledge, no strip-search as ever conducted. Sgt. Carter did not know if she was present when § 87(2)(b) left the stationhouse, but stated that she never learned that there were any issues with his release. She never learned that PO Leonard had used profanity or force against § 87(2)(b).

PO Remy testified that he, PO Leonard, PO Ciotti, and PO Paccione remained on scene for 10-15 additional minutes after § 87(2)(b) left. During that time, they attempted to start his vehicle by turning the key. PO Remy did not recall how the vehicle was ultimately brought back to the stationhouse. PO Remy did not recall where § 87(2)(b) was in the stationhouse when he and PO Leonard arrived. At first, he stated that § 87(2)(b) was already in the cells. Later, he stated that PO Leonard frisked § 87(2)(b) before he was placed in the cells, but also that he did not observe the procedural search that § 87(2)(b) should have been subject to before being placed in the cells. At any rate, PO Remy never learned of anything that happened at the stationhouse before his arrival. As far as PO Remy was aware, no officer at the stationhouse had any suspicion that § 87(2)(b) was concealing contraband that would not have been accessible through a routine search. No officer requested approval to conduct a strip-search, and no strip-search was conducted. PO Remy and PO Leonard contacted the § 87(2)(b) Police Department and determined that § 87(2)(b) would not be extradited for his bench warrant. The officers discussed the situation with Sgt. Knox, and she advised them to release § 87(2)(b) with a summons. PO Remy was not with PO Leonard when he went to the cells to retrieve § 87(2)(b) but stated that he never learned that PO Leonard had spoken discourteously to § 87(2)(b) or used any type of force against him.

PO Ciotti and PO Paccione remained on scene until a tow truck arrived to bring § 87(2)(b)'s vehicle to the stationhouse. After that, they resumed patrol. Neither officer knew anything about what might have happened at the stationhouse.

There is no notation that a strip-search was conducted in the Command Log. The undersigned reviewed the Command Log and Prisoner Holding Pen Roster (which was not received until July 28, 2017) to identify possible witnesses to allegations L, M, and N [15 Board Review]. Although three individuals may have been in the cells with § 87(2)(b) for some part of this incident, their information was not in BADS and they could not be reached for this case.

§ 87(2)(g)
[REDACTED]

_____ it is
recommended that **Allegations L, M, and N** be closed as **unsubstantiated**.

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date